

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Volha Shauchenka	Team: Squad #15	CCRB Case #: 201703019	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 04/11/2017 8:10 PM, Thursday, 04/20/2017 12:00 AM	Location of Incident: In front of § 87(2)(b); rear of § 87(2)(b)	18 Mo. SOL 10/11/2018	Precinct: 30		
Date/Time CV Reported Fri, 04/21/2017 9:20 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 04/21/2017 9:20 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joby Thomas	14581	951332	030 PCT
2. POM Michael Demelfi	17678	960445	030 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM David Sangster	28805	944168	030 PCT
2. POM Jason Melendez	14444	940462	030 PCT
3. SGT Daniel Cahill	03414	946814	030 PCT
4. POM Rajesh Sharma	17427	959228	030 PCT
5. POM Brian Dennis	13090	906089	030 PCT
6. LT Jorge Rodriguez	00000	918237	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joby Thomas	Abuse: On April 11, 2017, in front of § 87(2)(b) in Manhattan, Police Officer Joby Thomas stopped § 87(2)(b)	A . Unsubstantiated
B . POM Joby Thomas	Abuse: On April 11, 2017, in front of § 87(2)(b) in Manhattan, Police Officer Joby Thomas threatened to issue summons to § 87(2)(b)	B . Unsubstantiated
C . POM Joby Thomas	Abuse: On April 11, 2017, in front of § 87(2)(b) in Manhattan, Police Officer Joby Thomas refused to provide his name to § 87(2)(b)	C . Unsubstantiated
D . POM Joby Thomas	Abuse: On April 20, 2017, in the rear of § 87(2)(b) in Manhattan, Police Officer Joby Thomas stopped § 87(2)(b)	D . Exonerated
E . POM Joby Thomas	Abuse: On April 20, 2017, in the rear of § 87(2)(b) in Manhattan, Police Officer Joby Thomas frisked § 87(2)(b)	E . Unsubstantiated
F . POM Michael Demelfi	Abuse: On April 20, 2017, in the rear of § 87(2)(b) in Manhattan, Police Officer Michael Demelfi frisked § 87(2)(b)	F . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
G . POM Joby Thomas	Force: On April 20, 2017, in the rear of § 87(2)(b) in Manhattan, Police Officer Joby Thomas used physical force against § 87(2)(b)	G . Exonerated
H . POM Joby Thomas	Force: On April 20, 2017, in the rear of § 87(2)(b) in Manhattan, Police Officer Joby Thomas hit § 87(2)(b) Thomas against a police vehicle.	H . Unsubstantiated
I . POM Joby Thomas	Force: On April 20, 2017, in the rear of § 87(2)(b) in Manhattan, Police Officer Joby Thomas used physical force against § 87(2)(b)	I . Unsubstantiated
J . POM Joby Thomas	Abuse: On April 20, 2017, in the rear of § 87(2)(b) in Manhattan, Police Officer Joby Thomas used his personal electronic device to record video during police encounter.	J . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint on behalf of herself and her friend's son § 87(2)(b) with the CCRB over the telephone on April 21, 2017.

On April 11, 2017, at 7:08 p.m., PO Joby Thomas together with PO Michael Demelfi and PO Rajesh Sharma of the 30th Precinct responded to a 311 complaint about loud music in front of § 87(2)(b) in Manhattan. § 87(2)(b) was allegedly talking to her unidentified friend at the location and was allegedly told to leave by PO Thomas. § 87(2)(b) went to her home at § 87(2)(b) and stood near the front porch allegedly talking to a group of individuals from the neighborhood. At 8:10 p.m., PO Thomas, PO Demelfi and PO Sharma responded to § 87(2)(b) in regards to a radio transmission about a dispute. PO Tomas allegedly stopped § 87(2)(b) and threatened to issue her a summons for an open container of alcohol (**Allegations A and B**). § 87(2)(b) believed that PO Thomas was harassing her and allegedly asked for his name, to which he allegedly replied his name was "PO Cohan" and covered his nameplate (**Allegation C**). The officers corrected the assignment as non-crime and left the location.

On April 20, 2017, at 3:50 p.m., PO Thomas and PO Demelfi observed a suspicious green Hyundai with New York State license plate #§ 87(2)(b) that was parked by a fire hydrant in the rear of § 87(2)(b) with an unidentified female sitting on the front passenger seat. During PO Thomas' and PO Demelfi's investigation, § 87(2)(b) came to the vehicle in question and allegedly removed its keys from the ignition. PO Thomas stopped § 87(2)(b) to determine who the car owner was and both officers allegedly frisked him (**Allegations D, E and F**). § 87(2)(b) happened to be in the vicinity and approached PO Thomas and PO Demelfi questioning them why they had stopped § 87(2)(b). Shortly after that, PO David Sangster and PO Jason Melendez of the 30th Precinct arrived on the scene responding to PO Thomas' request for additional units. § 87(2)(b) continuously interfered with PO Thomas' actions and after she failed to comply with his multiple commands to step back, PO Thomas grabbed her by her arms and attempted to place her in handcuffs (**Allegation G**). PO Thomas allegedly threw § 87(2)(b) against the hood of a police vehicle and placed her in handcuffs (**Allegation H**). After that, PO Thomas escorted § 87(2)(b) to the back of his car and allegedly pushed her inside; because of PO Thomas' actions, § 87(2)(b) allegedly hit her legs on the bottom part of the vehicle (**Allegation I**). While in the car with § 87(2)(b) PO Thomas recorded a brief video of her on his personal cell phone (**Allegation J**). PO Thomas issued a parking summons #§ 87(2)(b) to the vehicle that was under the investigation, and § 87(2)(b) was released without any citations. § 87(2)(b) was transported to the 30th Precinct stationhouse and was charged with § 87(2)(b) by PO Thomas. § 87(2)(g), § 87(4-b)

§ 87(2)(g)

Video Evidence



2017-05-05_17-46-51.mp4

[BR 09]

Cell phone video 1



2017-05-05_17-54-18.mp4

[BR 10]

Cell phone video 2



2017-05-05_17-50-58.mp4

[BR 11]

Cell phone video 3



2017-06-09_9-28-27.mp4

[BR 12]

TARU video footage



2017-07-12_8-57-52.mp4

[BR 16]

Cell phone video recorded by PO Thomas

Mediation, Civil and Criminal Histories

- The case is unsuitable for mediation due to the arrest associated with the incident.
- Neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York as of August 16, 2017 with regard to the incident [BR 22].

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This a first CCRB complaint filed by § 87(2)(b) and on behalf of § 87(2)(b) [BR 28].
- PO Thomas has been a member of the service for six years and has two previous CCRB complaints filed against him containing four allegations. In case #201504430, there is one substantiated physical force allegation pleaded against him, for which the CCRB has recommended formalized training. NYPD recommended no disciplinary action, and PO Thomas was not penalized.
- PO Demelfi has been a member of the service for one year and this is a first CCRB complaint filed against him.

Potential Issues

- A verified statement was not obtained from § 87(2)(b) since he was uncooperative with the investigation and did not respond to the CCRB's seven phone calls and three letters, none of which were returned by USPS.
- Since § 87(2)(b) did not know the identity of the female sitting on the passenger side of the vehicle during the incident that took place on April 20, 2017 and absent any testimony from § 87(2)(b) the investigation failed to determine her identity and thus obtain her contact information.
- No statement was obtained from § 87(2)(b) § 87(2)(b) son § 87(2)(b) § 87(2)(b) since he did not witness the allegations based on her testimony.
- During the incident on April 20, 2017, § 87(2)(b) was talking on the phone with her friend and mother of § 87(2)(b) § 87(2)(b) over the speakerphone. Since § 87(2)(b) § 87(2)(b) was not present at the scene, she was not contacted.
- The investigation has identified an independent civilian witness § 87(2)(b) of the incident that took place on April 20, 2017. A verified statement was not obtained from § 87(2)(b) since he failed to respond to the CCRB's contact attempts after providing an unverified phone statement.
- The investigation failed to obtain any contact information for a civilian witness identified by § 87(2)(b) as § 87(2)(b)

- Several plainclothes officers responded to the incident on April 20, 2017 for back-up, but since their command was not documented in the NYPD Event #§ 87(2)(b) and none of the officers interviewed could identify them, apart from PO Melendez, who noted they were from the Warrant Squad, the investigation could not establish the identities of the additional witness officers.
- Although § 87(2)(b) alleged that PO Thomas touched her buttocks while attempting to take her cell phone out of her back pocket, she admitted she hid it in her pants and acknowledged the officer touched her back pocket thinking the cell phone was there. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)
- **Abuse of Authority:** According to TARU video footage and PO Thomas' testimony, Lt. Jorge Rodriguez and PO Brian Dennis of the same command later arrived on the scene, and PO Denis removed the Hyundai to the 30th Precinct to establish true ownership of the car due to the fact that license plate did not match the vehicle's registration. According to New York State Department of Motor Vehicles database, NYS license plate #§ 87(2)(b) belongs to a grey Toyota, while the vehicle in question is a green Hyundai [BR 23] [See video BR 12]. § 87(2)(g)

Allegation A - Abuse of Authority: On April 11, 2017, in front of § 87(2)(b) in Manhattan, Police Officer Joby Thomas stopped § 87(2)(b)

Allegation B – Abuse of Authority: On April 11, 2017, in front of § 87(2)(b) in Manhattan, Police Allegation A - Officer Joby Thomas threatened to issue summons to § 87(2)(b)

Allegation C – Abuse of Authority: On April 11, 2017, in front of § 87(2)(b) in Manhattan, Police Officer Joby Thomas refused to provide his name to § 87(2)(b)

In her verified statement to the CCRB, § 87(2)(b) alleged that she was told to leave the location on § 87(2)(b) by PO Thomas, she went home at § 87(2)(b) [BR 03]. Approximately 30 minutes later, she stepped outside and was standing by the front

entrance having left her jacket hanging on the left railing. Two unknown to § 87(2)(b) males were sitting on the steps talking, and § 87(2)(b) was waiting for her son. § 87(2)(b) met approximately four children who live in the neighborhood and started talking to them. At the same time, there were approximately 10 to 15 individuals arguing near § 87(2)(b). PO Thomas together with PO Demelfi and PO Sharma parked their vehicle in front of § 87(2)(b) building, and the individuals who § 87(2)(b) was talking to left. § 87(2)(b) went to the railing to pick up her jacket, and PO Thomas approached her while his partners were standing behind him. PO Thomas informed § 87(2)(b) officers were responding to a complaint about loud noises and asked her who the individuals who had been sitting on the steps were since they went inside the building. § 87(2)(b) replied she did not know them and asked PO Thomas if he wanted the key to the building since she lived there. PO Thomas asked for § 87(2)(b) identification, which she provided immediately. § 87(2)(b) did not recall if at that point the argument at § 87(2)(b) was still ongoing.

§ 87(2)(b) noted there were some empty soda cans and an open bottle of beer sitting near the entrance where the males had been sitting. PO Thomas informed § 87(2)(b) she smelled like alcohol and he could issue her a summons because any bottle that was near her was hers. § 87(2)(b) admitted to the investigator that earlier she had two shots of Jameson in a bar but she did not drink beer. PO Thomas called § 87(2)(b) friend who she was talking to earlier near § 87(2)(b) “fat”, and she became upset and asked the officer, “What the fuck you mean?” She asked PO Thomas for his shield number, and he replied, “You can clearly see it.” § 87(2)(b) wrote it down in her cell phone and then asked PO Thomas what his name was. PO Thomas replied his name was “PO Cohan” and covered his nameplate. § 87(2)(g)

Although § 87(2)(b) did not make any of these allegations in her initial complaint, she brought them up in her follow-up phone statement to the CCRB [BR 01, 02].

When interviewed at the CCRB, PO Thomas testified that when he, PO Demelfi, and PO Sharma responded to § 87(2)(b) § 87(2)(b) approached him while he was in the passenger side of his car and started asking the officers why they were harassing the individuals they have been interacting with in regards to the complaint [BR 16]. § 87(2)(b) asked for PO Thomas’ name and shield number, and he provided both to her. PO Thomas suspected § 87(2)(b) was drinking alcohol at the time since she was sipping from a foam cup and smelled its odor coming from her. Although PO Thomas could have questioned § 87(2)(b) about the cup, he chose not to since the individuals who had been listening to music loudly had complied with his request to lower it and he chose not to escalate the situation. PO Thomas and his partners left the location while § 87(2)(b) remained on the scene. Approximately one hour later, PO Thomas and his partners responded to § 87(2)(b) where he observed four to five individuals sitting on a stoop. The individuals did not appear to be arguing at the time, but PO Thomas noticed empty beer cans and foam cups everywhere on the porch. PO Thomas asked the individuals to “keep it down” and to clean after themselves. At that time, § 87(2)(b) approached PO Thomas and accused him of harassing her at her house. As soon as that happened, the individuals who were at the porch left and PO Thomas did not issue any summonses to them since he had not seen them actually drinking from the cans. PO Thomas informed § 87(2)(b) the officers were responding to an assignment about an argument, and § 87(2)(b) told him she lived there and asked him if he wanted to see her identification. PO Thomas replied, “Ok,” and § 87(2)(b) first showed it to him in her purse and then handed it to the officer. PO Thomas looked at § 87(2)(b) identification and returned it to her. § 87(2)(b) continued to behave in a disorderly manner, using profanity towards

the officer, which made PO Thomas believe she was intoxicated since he could not fully understand her statements. PO Thomas denied threatening to issue a summons to § 87(2)(b) and noted although she was behaving in a disorderly manner, she was not doing anything she could have been issued a summons for. PO Thomas did not recall questioning § 87(2)(b) about the open bottles of beer and noted he observed them before § 87(2)(b) approached the location. PO Thomas closed the assignment as non-crime, and the officers left. PO Thomas stated § 87(2)(b) was not considered stopped since he never told her she could not leave and she handed her identification to him herself. In addition, PO Thomas did not recall § 87(2)(b) ask for his name and shield number during the second interaction nor did he recall refusing to provide that information to her. PO Thomas confirmed he was the only officer who interacted with § 87(2)(b) on that day. PO Thomas pointed out that he had interacted with § 87(2)(b) once approximately three years prior and she attempted to flirt with him as he was issuing a summons to her. Thus, PO Thomas believed that § 87(2)(b) was “stalking him.”

During his in-person statement to the CCRB, PO Demelfi largely corroborated PO Thomas’ account of the incident that happened at § 87(2)(b) although he did not recall if § 87(2)(b) was holding a cup at that time [BR 20]. PO Demelfi speculated that § 87(2)(b) could have been intoxicated based on her statements and the fact she approached the location herself, however, he did not know that for certain. PO Demelfi did not recall if § 87(2)(b) asked for any of the officers’ names and shield numbers during the interaction. PO Demelfi noted when the officers responded to their second assignment, § 87(2)(b) had already been sitting on the steps in front of § 87(2)(b) together with another female. When the officers approached, he noticed a half-full bottle of Mike’s Hard Lemonade, an alcoholic beverage, next to § 87(2)(b). PO Demelfi did not discuss his observation with his partners since they responded there in regards to another assignment, although he noted he did not hear any screams or arguments there. As soon as the officers approached, § 87(2)(b) started yelling at PO Thomas again and asked him why he was harassing her. PO Thomas explained the reason why the officers were there, asked § 87(2)(b) if the container with alcohol was hers and asked her to pour it out. Although § 87(2)(b) claimed it was not hers, PO Demelfi believed that time she had been drinking from it since there was no one else around. PO Demelfi did not hear PO Thomas tell § 87(2)(b) he could issue her a summons for an open container and noted she was not issued a summons because PO Thomas used his discretion in the matter and none of the officers had seen her drink from it in fact or even holding it. PO Demelfi confirmed § 87(2)(b) was free to leave during that interaction. Although he recalled § 87(2)(b) mentioning she lived in the building, she did not show her identification nor did he recall PO Thomas ask for it. PO Demelfi did not recall § 87(2)(b) ask for PO Thomas’ name and shield number nor did he hear PO Thomas tell § 87(2)(b) his name was “PO Cohan.”

PO Sharma corroborated PO Demelfi’s account of PO Thomas’ interaction with § 87(2)(b) that preceded the incident at § 87(2)(b) and added he did not notice any signs of intoxication on § 87(2)(b) at the time [BR 19]. PO Sharma also confirmed that § 87(2)(b) was already standing in front of her house together with an unidentified female when the officers responded to their second assignment. After the officers approached the females, PO Thomas asked § 87(2)(b) if she heard anyone arguing in the vicinity. § 87(2)(b) became angry and asked PO Thomas why he had been following her and informed him she lived in the building. § 87(2)(b) took out her identification out of her wallet and offered PO Thomas to see it. PO Thomas replied he did not need to see her identification and explained the reason the officers were there. Although PO Sharma observed some open bottles of sodas in the vicinity of § 87(2)(b) he did

In his unverified phone statement, § 87(2)(b) noted that when he observed PO Thomas and PO Demelfi stop § 87(2)(b) in regards to a vehicle lacking proper registration and a license plate parked near a fire hydrant, the officers attempted to open the vehicle door, but § 87(2)(b) attempted to flee. One of the officers was able to apprehend him.

PO Thomas testified that when he observed the Hyundai, he noticed light smoke coming from the passenger window [BR 14]. PO Thomas became suspicious because that intersection is a common location for 311 complaints regarding narcotics sales. When he pulled over next to the car, he observed a female sitting on the front passenger side and smelled an odor of marijuana coming from the car, although he did not observe any smoke or cigarettes inside at that moment. PO Thomas decided to investigate and asked the female if the car was hers, but she did not respond and just looked straight. Both officers exited the car, and PO Thomas observed § 87(2)(b) walk “aggressively” towards the car looking upset, which raised a red flag for him. § 87(2)(b) leaned inside the car through the open driver side window and took out the car keys out of the ignition. § 87(2)(b) started walking away across the street, and PO Thomas asked him if the car was his, to which he responded it was not. PO Thomas followed § 87(2)(b) and grabbed him by his elbow stopping him at the southwest corner of § 87(2)(b) for a suspected petit larceny. PO Thomas explained the reason for the stop to § 87(2)(b) but he did not provide an explanation. PO Thomas noted although anything was possible, he did not have probable cause to believe § 87(2)(b) was armed, therefore, neither PO Thomas nor PO Demelfi frisked him. At that point, PO Thomas was just attempting to determine who and where the car owner was. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

PO Demelfi largely corroborated PO Thomas’ account of this part of the incident apart for the following details [BR 20]. After observing the Hyundai, PO Thomas informed PO Demelfi he was going to issue two parking summons to it, although he did not recall for what infractions. PO Demelfi confirmed PO Thomas’ account of the circumstances preceding § 87(2)(b)’s stop, but noted that § 87(2)(b) stopped himself on the west side of the crosswalk of § 87(2)(b) and both officers stopped near him. § 87(2)(b) was not free to leave since the officers were investigating his relation to the car. Although PO Demelfi described § 87(2)(b) as nervous and stated he was clenching his fists, neither he nor PO Thomas frisked § 87(2)(b) since he did not believe he was armed and dangerous. At that point, PO Demelfi did smell an odor of marihuana coming from the Hyundai as he was standing near it.

During his in-person statement to the CCRB, PO Sangster testified he and PO Melendez responded to the location after PO Thomas requested assistance in regards to a vehicle stop [BR 17]. Upon arrival, he observed the vehicle in question parked at the northwest side of § 87(2)(b) but he was unaware if any subjects of the stop were in the vicinity. At that time, PO Thomas was writing a summons at the back of the car, but PO Snagster was not aware for what. PO Sangster did not talk to PO Thomas or PO Demelfi and was unaware what initiated the incident. While standing near the car, PO Sangster did not smell any odor of marijuana coming from it. PO Sangster did not observe either PO Thomas or PO Demelfi frisk anyone on the scene. PO Sangster could not attest to whether the location of the incident is drug-prone area since he is new to the command.

When interviewed at the CCRB, PO Melendez corroborated his partner’s account and confirmed he was not aware what prompted the incident and who was being investigated nor did he observe any of the civilians being frisked on the scene [BR 18]. However, PO Melendez

confirmed PO Thomas' and PO Demelfi's descriptions of the incident location as a known location for drug transactions.

According to video footage from TARU camera, at nine seconds, § 87(2)(b) exits the parked sedan from the right passenger side and walks away towards the deli at § 87(2)(b) in a fast manner [BR 12]. § 87(2)(b) waives at another male who is crossing the street, and a marked police SUV appears in the frame at 24 seconds. The RMP slowly drives by and stops next to the car at 28 seconds. At 1:07 minutes, § 87(2)(b) walks from the left frame and crosses the street toward the deli. At 1:43 minutes, § 87(2)(b) walks toward the parked car and leans inside it through the open driver window. At the same time, the service lights on the RMP are activated, and PO Thomas and PO Demelfi exit their car. § 87(2)(b) walks toward the deli and PO Thomas follows him; both of them disappear from the frame. PO Demelfi approaches the right frame at 2:00 minutes, where he, PO Thomas and Mr. Demelfi stand for 45 seconds. At 2:45 minutes, § 87(2)(b) walks away from the officers toward the crosswalk in a fast manner and the officers follow him. At 2:49 minutes, PO Thomas takes § 87(2)(b) by his arm while he continues to walk away from the officers backwards. They finally stop by the traffic light pole on the other side of the street, and § 87(2)(b) approaches them at 2:52 minutes. The video does not show either PO Thomas or PO Demelfi frisk § 87(2)(b) because their view is obstructed by the traffic sign in front of the TARU camera.

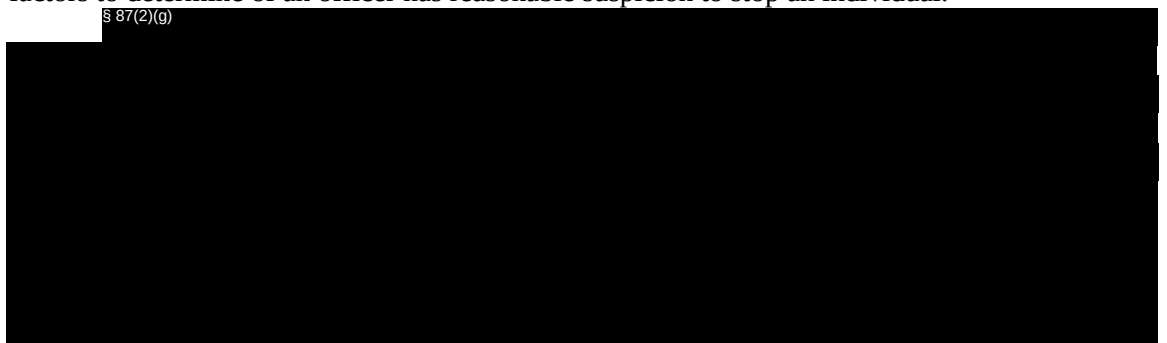
According to cell phone video 1 recorded by an unidentified civilian witness, the individual recording the video asks other individuals to give him the car keys multiple times [BR 09]. At 33 seconds, the individual states that § 87(2)(b) was being questioned because of the registration of the vehicle. At 1:23 minutes, the female who was sitting on the front passenger side states, "He came over here asking me who is the freaking owner of the car."

Based on the cell phone video 2, at 24 seconds, the abovementioned female states, "The nigga is in the store. I'm sitting down. He asked me, like, who's the owner" [BR 10]. PO Thomas replies, "Because the car is not registered, and you did not want to answer." The female responds, "But right, but that wasn't the owner though. I told you the owner was at the store. He was at the store." PO Thomas replies, "Ok, but he took the key. And he took the key and left. And you said you're not going." The female states, "Cause I'm sitting there, and you assuming."

NYPD BADS database search did not reveal any arrest for § 87(2)(b) in April 2017 [NYPD 22].

According to New York State Criminal Procedure Law § 140.50, an officer may stop an individual if he/she has reasonable suspicion that an individual has committed, is committing or is about to commit a crime [BR 29]. Flight alone cannot justify reasonable suspicion. People v. Martinez, 80 N.Y. 2d 444 [BR 30]. However, it can be considered in conjunction with other factors to determine if an officer has reasonable suspicion to stop an individual.

§ 87(2)(g)



§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **exonerated**.

§ 87(2)(g)

Consequently, it is recommended that **Allegations E and F** be closed as **unsubstantiated**.

Allegation G – Force: On April 20, 2017, in the rear of § 87(2)(b) in Manhattan, Police Officer Joby Thomas used physical force against § 87(2)(b)

Allegation H – Force: On April 20, 2017, in the rear of § 87(2)(b) in Manhattan, Police Officer Joby Thomas hit § 87(2)(b) § 87(2)(b) against a police vehicle.

Allegation I – Force: On April 20, 2017, in the rear of § 87(2)(b) in Manhattan, Police Officer Joby Thomas used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after she approached § 87(2)(b) PO Thomas and PO Demelfi, she repeatedly told the officers to let § 87(2)(b) go since he is a minor [BR 03]. § 87(2)(b) happened to be talking to § 87(2)(b)'s mother § 87(2)(b) on the phone, placed her on the speakerphone, and handed the phone to § 87(2)(b). PO Thomas repeatedly told § 87(2)(b) to leave and mind her own business, and § 87(2)(b) told PO Thomas he just needed to do his job. At that point, all of them crossed the street back to the parked vehicle and a crowd of approximately 25 to 35 individuals gathered around. § 87(2)(b) then spoke to the female in the car, and PO Thomas told her he would arrest her if she did not leave. § 87(2)(b) remained on the scene and continued telling the officer what he should have done. PO Thomas told § 87(2)(b) again that if she did not leave, he would arrest her. After § 87(2)(b) finished his phone conversation with § 87(2)(b), § 87(2)(b) took her cell phone and continued talking to her as well. Suddenly, PO Thomas grabbed § 87(2)(b) by her right arm, and she pulled it away asking him, "What the fuck are you doing?" PO Thomas informed § 87(2)(b) she was under arrest, grabbed her by her both arms, turned her around and threw her against the hood of a police car. Her stomach and chest made contact with the car, and she turned her head towards PO Thomas asking him why she was being arrested. PO Thomas placed § 87(2)(b) in handcuffs and asked her why she was spitting at him. § 87(2)(b) denied moving her arms while she was being handcuffed or spitting at the officer. PO Thomas pulled § 87(2)(b) towards an open car door and pushed her in her back and arms inside the car. As a result, § 87(2)(b) hit her legs on the bottom of the car, stopped and told the officer she could get into the car herself. PO Thomas released § 87(2)(b) and she got inside the vehicle. § 87(2)(b) alleged she sustained bruising and redness to her upper arms, right shoulder, and front lower leg from PO Thomas holding her and pressing hard against her [See photographs BR 04, 05, 06, 06]. The bruises started to appear on April 21 and April 22, but § 87(2)(b) did not seek medical attention because she did not want to extend her time in police custody. § 87(2)(b) did not make any of the abovementioned allegations apart from the hit against a vehicle in any of her preceding statements to the CCRB [BR 01, 02].

In his unverified phone statement, § 87(2)(b) stated as the officers were investigating § 87(2)(b) § 87(2)(b) approached the location and began to interfere and yell at the officers [BR 13]. § 87(2)(b) was using profanity towards the officers and was preventing them from doing their job. § 87(2)(b) was not certain if any of the officers issued any instructions to § 87(2)(b).

§ 87(2)(b) Eventually, additional unit arrived, and PO Thomas and PO Demelfi each grabbed § 87(2)(b) arms and placed her in handcuffs. The officers did not have any issues while handcuffing § 87(2)(b) and she was placed in a police vehicle without any issues as well. However, § 87(2)(b) was verbally resisting being handcuffed. § 87(2)(b) was not aware if § 87(2)(b) hit her legs on the bottom of the police car. After being placed in the car, § 87(2)(b) continued to scream. § 87(2)(b) emphasized that PO Thomas and PO Demelfi behaved in a professional manner and he did not observe them use any physical force towards her.

PO Thomas testified as he was conducting an investigative stop of § 87(2)(b) a group of bystanders gathered around and began observing the incident [BR 14]. Although some of them had their cell phones out and some were yelling something Spanish, PO Thomas described the situation as under control. After approximately five to seven minutes, § 87(2)(b) approached the incident location and started yelling and using profanity towards PO Thomas. PO Thomas believed that § 87(2)(b) attracted more civilians since at that point the crowd rose to 25 to 30 people, some of whom were yelling as well. § 87(2)(b) and the crowd blocked traffic in the southbound lane of § 87(2)(b). PO Thomas noted that his vehicle was parked behind the Hyundai, and he believed other cars could have passed around it. Eventually, § 87(2)(b) handed PO Thomas the car keys and the alleged owner of the car came over. PO Thomas let go of § 87(2)(b) and issued a parking summons to the vehicle. PO Thomas intended to investigate the car, but § 87(2)(b) continued to yell for approximately seven minutes. PO Thomas told § 87(2)(b) to leave approximately four times and eventually told her she would be arrested if she did not. § 87(2)(b) refused to leave, and PO Thomas informed her she was going to be under arrest. PO Thomas grabbed § 87(2)(b) right hand and she started spitting at him. PO Thomas pushed § 87(2)(b) left shoulder away to prevent her from spitting, and she elbowed PO Thomas two to three times in his stomach. PO Demelfi took § 87(2)(b) other hand and both officers slowly moved her towards the hood of their car in order to get some balance because § 87(2)(b) was moving around; after that, PO Thomas handcuffed her. PO Thomas noted the entire process took him approximately 10 minutes. PO Thomas denied throwing § 87(2)(b) against the car and denied using excessive force when grabbing § 87(2)(b). § 87(2)(b) never complained to PO Thomas of any pain or injury, and he stated if he became aware she sustained bruising, he would have called an ambulance for her. § 87(2)(b) continued to curse as she was being handcuffed. § 87(2)(b) was then placed in the police vehicle, and PO Thomas denied pushing her inside or observing her hit her legs on the bottom of the car. § 87(2)(b) did not complain of hitting her legs either. § 87(2)(b) was handcuffed while holding her cell phone and eventually placed her phone in her pants to prevent PO Thomas from taking it away. § 87(2)(b) continued talking to § 87(2)(b) over the speakerphone even after she was placed in the vehicle.

§ 87(2)(g), § 87(2)(a) 160.50

PO Demelfi confirmed that § 87(2)(b) approached the incident location and was interfering with the officers' actions, however, he did not recall any particular statements she made or if she used profanity [BR 20]. PO Demelfi also believed § 87(2)(b) was blocking traffic since she was standing in the middle of § 87(2)(b) and noted his vehicle was parked on the rights side and was not preventing cars from moving. Although there was a crowd on the scene, which was agitated by § 87(2)(b) no one else attempted to get involved in the incident. PO Demelfi also confirmed that PO Thomas told § 87(2)(b) at least three times to step back and that she would be arrested if she did not, but she refused and kept getting closer to the officers. Therefore, PO Thomas initiated her arrest by instructing her to place her hands behind her back.

§ 87(2)(b) did not comply and was pulling her hands away as PO Thomas was attempting to grab them. PO Demelfi did not observe § 87(2)(b) intentionally elbow PO Thomas or spit at him. Eventually, both officers took § 87(2)(b) wrists and placed her arms behind her back. § 87(2)(b) was handcuffed in approximately one minute. § 87(2)(b) was not shoved or pushed against the police vehicle and no other force was used against her apart from the grabbing of her hands. PO Thomas placed § 87(2)(b) in the back of their car, and PO Demelfi did not observe PO Thomas push § 87(2)(b) inside nor did he see her hit her legs. § 87(2)(b) did not complain that she hit her legs nor did she complain of any pain or injury. PO Demelfi confirmed that § 87(2)(b) was using her cell phone while handcuffed and continued to do so after she was handcuffed. PO Demelfi later transported § 87(2)(b) to Manhattan Central Booking, but § 87(2)(b) did not complain of any bruising to him there either.

PO Sangster testified that he performed crowd control duties and recalled that PO Thomas made an arrest during the incident, although he did not know the reason for it or the time when it occurred [BR 17]. PO Sangster confirmed there was a large crowd of at least 20 people at the location, but he was not certain if any of the civilians were blocking traffic. He later noted that a police vehicle might have been blocking traffic on § 87(2)(b). PO Sangster did not recall § 87(2)(b) walking around and blocking traffic and noted she did not stand out as particularly disorderly to him. Since PO Sangster was focused on the crowd, he did not observe what happened during § 87(2)(b) arrest nor did he hear her and PO Thomas engage in an argument. After the arrest happened, PO Sangster saw § 87(2)(b) when she was already in handcuffs and was being escorted to a police vehicle. PO Sangster did not observe § 87(2)(b) spit at PO Thomas or use any force towards him, nor did he hear § 87(2)(b) use any profanity towards PO Thomas. PO Sangster did not observe how § 87(2)(b) was placed in the car nor did he see PO Thomas push her inside. PO Sangster did not hear § 87(2)(b) complain that she hit her legs or of any pain or injury.

PO Melendez stated that he was on the scene for crowd control and recalled observing § 87(2)(b) walking back and forth at the intersection [BR 18]. PO Melendez did not observe her blocking any traffic and noted that a police vehicle was at the intersection blocking the path of other cars. § 87(2)(b) was speaking loudly and possibly addressing the crowd. PO Melendez did not recall § 87(2)(b) use any profanity or being particularly disorderly. Approximately 10 minutes after PO Melendez' and PO Sangster's arrival, § 87(2)(b) was handcuffed and arrested by PO Thomas, but PO Melendez was unaware of the reason for the arrest. PO Melendez did not hear PO Thomas issue § 87(2)(b) any commands or tell he she would be arrested if she did not step back. PO Melendez did not observe how § 87(2)(b) was handcuffed or if there were any issues during the process. PO Melendez § 87(2)(g) stating he did not observe any of the force allegations and that he did not hear § 87(2)(b) complain of any pain or injury.

According to TARU video footage, § 87(2)(b) stood together with PO Thomas, PO Demelfi and § 87(2)(b) for almost a minute after approaching them [BR 12]. Other civilians were standing nearby as well. When § 87(2)(b) and the officers cross the street back to the car, § 87(2)(b) follows them together with other witnesses. The video reveals § 87(2)(b) talking on the phone as he is crossing the street back to the car. PO Thomas, PO Demelfi and § 87(2)(b) talk near the car for approximately two minutes while a number of civilians are gathered around. § 87(2)(b) is not visible on the video, but at 6:34 minutes she appears to be walking back and forth on the sidewalk near the deli at § 87(2)(b). Three back-up officers arrive at the location at 6:21 minutes, after which, PO Thomas hands and object that looks like a

paper to PO Demelfi and walks fast towards § 87(2)(b). At 6:58 minutes, PO Thomas takes § 87(2)(b) and walks with her to the police vehicle while she slows down a few times attempting to turn towards him. PO Thomas places § 87(2)(b) against the car on her stomach and blocks her view. At 7:06 minutes, PO Thomas is either placing or attempting to place handcuffs on § 87(2)(b) and at 7:09 minutes, she turns around and takes a step towards PO Demelfi motioning with her arms. PO Thomas turns § 87(2)(b) toward the car and she extends her left arm while holding a plastic bag. PO Thomas takes her arm and places it behind her back; § 87(2)(b) view is then blocked by PO Thomas again. At 7:29 minutes, § 87(2)(b) takes a step away from PO Thomas lifting her right elbow attempting to turn around. At 7:32 minutes, § 87(2)(b) is partially turned towards PO Thomas and PO Demelfi approaches him and assists him in handcuffing her. § 87(2)(b) is standing still now. At 7:52 minutes, PO Thomas walks § 87(2)(b) to the right side of his vehicle and when they approach it, their view is blocked by other officers. At 8:06 minutes, § 87(2)(b) takes a step back while her feet are seen by the car, however, her actions are not visible. PO Thomas stands by the door until 8:44 minutes, when he closes the door.

Cell phone video recorded by an unidentified civilian witness confirms that § 87(2)(b) was yelling as she was being handcuffed and after, but it did not reveal any of the force allegations or what happened prior to that [BR 09, 10, 11].

Based on the video recorded by PO Thomas, § 87(2)(b) was talking to § 87(2)(b) on her cell phone over the speakerphone while it was in her pants [BR 16]. § 87(2)(b) was saying she was going to file a complaint against PO Thomas, and at 16 seconds, § 87(2)(b) says, “Tell them he tried to rape you, he touched your pussy ... (inaudible).” At 19 seconds, § 87(2)(b) laughs and says, “You’re on speaker.”

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§ 87(2)(b) Upon reviewing the report during his interview, PO Thomas stated he most likely missed that detail when preparing the report [BR 14].

According to NYPD Patrol Guide Procedure 221-01, an officer may use only that amount of force necessary to gain compliance [BR 24]. As per New York State Penal Law §35.30, an officer may use physical force to effect and arrest or to prevent an attempt to escape custody to the extent he/she reasonably believes [BR 25].

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **exonerated**.

§ 87(2)(g)

Thus, it is recommended that **Allegations H** and **I** be closed as **unsubstantiated**.

Allegation J – Abuse of Authority: On April 20, 2017, in the rear of § 87(2)(b) in Manhattan, Police Officer Joby Thomas used his personal electronic device to record video during police encounter.

PO Thomas testified that after § 87(2)(b) made several false accusations, he made a brief video recording of her while she was in his vehicle, previously warning her, “No false allegations, you are being recorded” [BR 14]. 23 seconds long video clip recorded by PO Thomas captured audio only since his cell phone was in a bullet proof vest [BR 16].

According to NYPD Patrol Guide Procedure 203-06, using a personal cellular phone to record video/or audio during any police encounter is prohibited conduct [BR 26].

§ 87(2)(g)

Therefore, it is recommended that **Allegation J** be closed **substantiated**.

§ 87(2)(g), § 87(4-b)

Squad: 15

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date